

**FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

THIRD JOINT STATUS REPORT

TO THE HONORABLE COMMISSION:

Pursuant to the Scheduling Order issued by this Honorable Commission on August 6, 2019, the Parties submit this Third Joint Status Report.

First, the parties apologize for not filing this report on November 12, 2019, as requested in the FMC's scheduling Order. They had hoped to resolve the discovery controversy outlined in Part C of this report, prior to filing it.

Second, the parties have concluded discovery, subject to PRPA's reservations as explained in Part C. The report follows:

A. Production of Initial Disclosures

1. Toyota received PRPA's initial disclosures on October 30, 2019.

B. Depositions

1. Toyota took the deposition of PRPA's representative, Mr. Luis de Jesús-Clemente, on November 5, 2019.

2. PRPA took the deposition of Toyota's representative, Mr. Daniel O'Neill, on November 5, 2019.

C. Responses to Interrogatories

1. Last December 12, 2019, PRPA submitted to the FMC a motion to compel answers to interrogatories asking for information on whether Toyota passed the electronic scanning fee object of this litigation, in its price to dealers and customers.
2. Toyota had previously shared with PRPA its objection to said discovery, explaining the legal foundation therefor. PRPA included copy of said explanation as an attachment to its motion to compel.
3. Toyota moved that PRPA's motion be stricken from the record as belated.
4. On November 14, 2019, the Commission issued an Order denying both PRPA's motion to compel and Toyota's motion to strike. The Commission deemed that briefing was sent to commence and the parties' dispute related to the "pass-through defense" could be addressed more fully during the briefing stage of the case.

D. Mediation and Settlement Negotiations

5. To date, Toyota has received no settlement counterproposal from PRPA.

E. Developments in Related Cases

6. The Federal Maritime Commission issued a *Memorandum Opinion and Order* on October 21, 2019, in *In re Vehicle Carrier Services*, F.M.C. Docket Nos. 16-01, 16-07, 16-10, 16-11.
7. There have been no developments in *Dantzler, Inc., et. al. v. Puerto Rico Ports Authority* 18-2089 (1st Cir.). The *Dantzler* case has been fully briefed.
8. PRPA will be filing a motion to stay all proceedings until the *Dantzler* case is resolved.

An original and five copies of this Joint Motion will be filed with the Office of the Secretary.

WHEREFORE the parties respectfully request that the FMC take notice of the above.

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 21st day of November, 2019.

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CERTIFICATE OF SERVICE

We hereby certify that on this same date we served a copy of the foregoing document upon each and all parties of record through their respective attorneys by electronic mailing to the following addresses:

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